

REASONABLE ACCOMMODATIONS

Federal agencies must provide reasonable accommodations to qualified employees or applicants with disabilities, unless to do so would cause undue hardship. In general, an accommodation is a change in the work environment or in the way things are customarily done that would enable an individual with a disability to enjoy equal employment opportunities. There are three categories of reasonable accommodations:

- modifications or adjustments to a job application process to permit an individual with a disability to be considered for a job (such as providing application forms in alternative formats like large print or Braille);
- modifications or adjustments necessary to enable a qualified individual with a disability to perform the essential functions of the job (such as providing sign language interpreters); and
- modifications or adjustments that enable employees with disabilities to enjoy equal benefits and privileges of employment (such as removing physical barriers in an office cafeteria).

PROCEDURES ON REASONABLE ACCOMMODATIONS

- An employee or applicant with a disability, family member, health professional or other representative who is acting on behalf of the employee/applicant may initiate a request for reasonable accommodation orally or in writing. An individual's oral request will start the reasonable accommodation process. However, for record keeping purposes, the requestor is required to submit a completed NCD Form NCD 7-100-1 contained in this Appendix within one week of an oral request.
- A request for a reasonable accommodation should be made to the requesting employee's supervisor or in their absence, the next in line supervisor.
- NCD's Accommodations Coordinator may arrange for certain types of common accommodations for employees (for example sign language interpreters for meetings; CART reporters for meetings; Braille documents) without the need for submitting a form.
- The requesting employee's supervisor will evaluate the request and engage in an interactive discussion about the accommodation request with the requesting employee to reach a decision.

- If the supervisor requires assistance with an accommodation request, he/she should contact NCD's HR service provider GSACABS.
- Requesting employees and NCD decision-makers are encouraged to consult EEOC guidance and technical assistance documents to identify and evaluate possible accommodations, such as the EEOC's Enforcement Guidance on Reasonable Accommodation and Undue Hardship under the ADA, available at <https://www.eeoc.gov/laws/guidance/enforcement-guidance-reasonable-accommodation-and-undue-hardship-under-ada>
- Unless there are extenuating circumstances, e.g. necessary medical documentation that is necessary or delayed or services that are not easily/timely available, within 20 business days (1 month) from the date the completed request was sent to the requesting employee's supervisor, the accommodation, if determined to be reasonable, should be provided.
- In certain circumstances, reasonable accommodations may be expedited, such as where the reasonable accommodation is needed to enable an individual to apply for a job; or is needed for a specific activity that is scheduled to occur shortly.
- When all the facts and circumstances known to the supervisor make it is likely that the requesting employee will be entitled to an accommodation, but the accommodation cannot be provided immediately, NCD may provide the individual with an interim accommodation, absent undue hardship.
- If the requesting employee's disability and/or need for accommodation are not obvious or already known, his/her supervisor is entitled to ask for and receive medical information showing that the requestor has a covered disability that requires an accommodation.
- A disability is obvious or already known when it is clearly visible or the individual previously provided medical information showing that the condition met the Rehabilitation Act definition.
- It is the responsibility of the applicant/employee to provide appropriate medical information requested by NCD where the disability and/or need for accommodation are not obvious or already known or more detail is needed on limitations to assist the supervisor in determining the appropriate accommodation or accommodation options with the employee.
- If a supervisor requires medical documentation, he/she will work with NCDS HR provider to prepare the request for medical information.
- Provided medical information must be sufficient to explain: (1) the nature of the

individual's disability; (2) the need for reasonable accommodation; and (3) how the accommodation, if any, will assist the individual to apply for a job, perform the essential functions of a job, or enjoy the benefits and privileges of the workplace.

- Confidential medical information may be disclosed by NCD under limited circumstances including: (1) supervisors and managers who need to know may be told about necessary restrictions and about the necessary accommodation(s); (2) first aid and safety personnel may be told if the disability might require emergency treatment; (3) government officials to investigate the agency's compliance with the Rehabilitation Act; (4) workers' compensation offices or insurance carriers; and (5) agency EEO officials may be given the information to maintain records.
- NCD is not required to create a position as an accommodation but will consider reassignment to a vacant position for which an employee is qualified, and not just permission to compete for such position as a reasonable accommodation, when it determines that no other reasonable accommodation will permit an employee with a disability to perform the essential functions of his or her current position.
- If there are extenuating circumstances that will inhibit either processing a request for or delivering a reasonable accommodation, the supervisor or manager handling the request will notify the requestor promptly and keep the employee informed of the approximate date on which the agency may complete the process or issue a decision and investigate the possibility of temporary measures that could be taken to assist the requestor. Any changes or developments should be communicated promptly to the requestor.
- Requesting employees may track the processing of requests for reasonable accommodation by conferring with their supervisor.
- When an accommodation is granted or denied, the Executive Director will complete the "Reasonable Accommodation Information Report" (Appendix B) and maintain it for future reporting.
- When a request is denied, the requestor will be informed by a written notice (see Appendix C). The notice will specify the reasons for denying the request; for example, why the medical documentation is inadequate to establish that the individual has a disability or needs reasonable accommodation; why the requested accommodation would not be effective; or, why the accommodation would pose an undue hardship to the agency. It will explain the right to file an EEO complaint and rights to pursue an MSPB appeal. Within five business days upon receipt of the denial notice, the requestor may submit a reconsideration request to the Chairperson or Executive Director (See Appendix C for appropriate official). New information and justification should be presented to support the reconsideration request. The Chairperson/Executive Director will issue a decision on reconsideration within 10 business days after receipt of the individual's request. Pursuing

reconsideration and any informal dispute resolution procedures does not toll the time limits for initiating statutory claims.

- If the resources available to the agency as a whole, excluding those designated by statute for a specific purpose that does not include reasonable accommodation, would enable it to provide an effective reasonable accommodation without undue hardship, requests for reasonable accommodation are not denied for reasons of cost, and individuals with disabilities are not excluded from employment due to the anticipated cost of a reasonable accommodation.
- If an individual wishes to request reconsideration of a denial, he/she may take the following steps:
 1. First, ask the decision maker to reconsider his/her denial. Additional information may be presented to support this request.
 2. If the decision maker does not reverse the denial and the decision maker was the Executive Director; the individual can ask the Chairperson to do so.
- If an individual wishes to file an EEO complaint, or pursue MSPB grievance procedures, he /she must take the following steps:
 1. For an EEO complaint, pursuant to 29 CFR § 1614, contact an EEO counselor through Agency Liaison Division within 45 days from the date of the notice of denial of reasonable accommodation; or
 2. For a collective bargaining claim, file a written grievance in accordance with the provisions of the agency's collective bargaining agreement; or
 3. Initiate an appeal to the Merit Systems Protection Board within 30 days of an appealable adverse action, as defined in 5 CFR § 1201.3.

APPENDIX A

NCD FORM 7-100-1

REQUEST FOR REASONABLE ACCOMMODATION

1. Name of Employee/Applicant: _____
2. Telephone no. _____
3. Office/Organization: _____
4. ACCOMMODATION REQUESTED. Please be as specific as possible (e.g., adaptive equipment, reader, or interpreter.)
5. REASON FOR REQUEST. (If accommodation is time-sensitive, please explain.)
 - () Application Process
 - () Performing job functions or accessing the work environment
 - () Accessing a benefit or privilege of employment (e.g., attending a training program)
6. Explain why the accommodation is needed and how it will help you to accomplish the reason chosen above.

Employee or Applicant Signature: _____ Date: _____

Supervisor signature: _____ Date: _____

This form is required to be kept confidential by the supervisor and management.

APPENDIX B

NCD FORM 7-100-2

REASONABLE ACCOMMODATION INFORMATION REPORT FOR SUPERVISORS

Name of Employee/Applicant:

Position Title:

Office:

Telephone:

1. Reasonable accommodation needed for (check one):

() Application Process

() Performing job functions or accessing the work environment

() Accessing a benefit or privilege of employment (e.g., attending a training program or special event)

2. Type of reasonable accommodation requested (e.g., adaptive equipment, staff assistant, removal of architectural barrier):

3. Type of reasonable accommodation provided (if different from what was requested):

4. Reasonable accommodation (check one) indicating that the claim was either:

() Approved /Date: _____ or () Denied /Date: _____

(If denied, attach copy of the written denial letter/memo)

5. Date reasonable accommodation provided _____

6. If time limits outlined in the reasonable accommodation procedures were not met, please explain why.

7. Explain the medical information and documents required to process this request, if applicable.

8. Sources of technical assistance, if any, consulted in trying to identify possible reasonable accommodations (e.g., Job Accommodation Network, Disability Program Manager, and Disability Organization).

Comments:

Submitted by: _____ Date: _____

**ATTACH COPIES OF ALL DOCUMENTS OBTAINED OR DEVELOPED IN
PROCESSING THIS REQUEST**

APPENDIX C

NCD FORM 7-100-3

DENIAL OF REASONABLE ACCOMMODATION REQUEST

(Must complete items 1-4)

To: (Name of the requestor):

Type(s) of reasonable accommodation requested:

Request for reasonable accommodation denied because (may check more than one item):

_____ Accommodation ineffective

_____ Accommodation would cause undue hardship

_____ Medical documentation inadequate

_____ Accommodation would require removal of an essential function

_____ Accommodation would require lowering of performance or production standard

_____ Other (please specify) _____

Specify reason(s) for the denial of reasonable accommodation (e.g., why accommodation is ineffective or causes undue hardship):

If the requester proposed one type of reasonable accommodation which is being denied but rejected an offer of a different type of reasonable accommodation, explain both the reasons for denial of the requested accommodation and why you believe the chosen accommodation would be effective:

Name, Title and Signature of Deciding Official: _____

Date: _____